

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

08/14/2026
Clerk of the Court
BY: ANNIE PASCUAL
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

NOTICE OF OPPOSITION

CCP 425.16(c) FEES

Hearing: September 8, 2026
Time: 9:00 a.m.
Dept.: 301

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion opposed.

1 3. The Clerk's authority to accept this paper is under Government Code sections 68150 and
2 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
3 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,
4 rules 2.118 and 2.119; this paper does not present any of those grounds.

5 4. The Court's authority to consider the substance is under Code of Civil Procedure section
6 425.16, subdivision (c), and California Rules of Court, rules 3.1110 and 3.1113.

7 5. This paper is filed August 14, 2026, which is early and still timely under Code of Civil
8 Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300, measured
9 from August 11, 2026 service of the motion set for September 8, 2026, 9:00 a.m., Department
10 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673). Plaintiff
11 opposes the motion and does not concede a stipulated date.

12 Hearing: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
13 10369670 notice, 10369671 O'Connell declaration, 10369673 MPA; served August 11, 2026).
14 Plaintiff opposes the motion and does not concede a stipulated date. Hon. Christine Van Aken.
15 Case No. CGC-25-631801.

16 **I. PURPOSE**

17 Plaintiff Franciscus Dylan Rosario respectfully gives notice that he opposes the Motion for At-
18 torneys' Fees and Costs under Code of Civil Procedure section 425.16(c) of Defendants CSAA
19 Insurance Exchange; Carbone, Smith & Koyama; and Michael R. Chambers, served August 11,
20 2026, and set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587;
21 DocIDs 10369670, 10369671, 10369673; served August 11, 2026). Plaintiff opposes the motion
22 and does not concede a stipulated date.

23 Defendants demand **\$35,973.00** in attorney fees and **\$1,137.46** in costs, totaling **\$37,110.46**. Plain-
24 tiff asks this Court to deny the motion in full or, in the alternative, to reduce any award to fees and
25 costs reasonably incurred on the special motion to strike after lodestar, scope, apportionment, and
26 cross-case duplication scrutiny, and to enter Plaintiff's [Proposed] Order lodged concurrently.

II. SCOPE

This opposition addresses Defendants’ August 11, 2026 fee package in Case No. CGC-25-631801 under Code of Civil Procedure section 425.16(c): lodestar, scope, apportionment, cross-case duplication, and costs sought in that motion. Plaintiff asks the Court to deny the motion in full or reduce any award as set forth in the accompanying Memorandum and [Proposed] Order.

Memorandum of Costs issues under Defendants’ MC-010 dated August 11, 2026 (claiming the same **\$1,137.46**) are the subject of Plaintiff’s separately noticed Motion to Tax or Strike Costs under California Rules of Court, rule 3.1700(b), and are not merged into the fee motion noticed by Defendants for September 8, 2026 except as Plaintiff objects to double recovery of identical costs through two vehicles. The tax motion remains TBD / specially set.

By this filing, Plaintiff places before this Department the express statutory and rules authority for each accompanying paper. Plaintiff’s authority to file each paper, and the Clerk’s authority to accept it, are set forth in each paper’s Authority to File section and rest on Code of Civil Procedure sections 1005, 1010, 1010.6, 1014, and 2015.5; California Rules of Court, rules 1.21, 2.100 through 2.111, 2.118, 2.119, 2.256, 2.257, 3.1110, 3.1113, and 3.1300; and Government Code sections 68150 and 69845.

III. GROUNDS IN SUMMARY

As set forth in the accompanying Memorandum of Points and Authorities, Defendants’ fee motion fails or must be sharply reduced because:

1. **Lodestar.** The \$210 blended rate is modest, but the claimed **169.30 hours** for litigating “this case in its entirety” through July 10, 2026, plus **two anticipated hearing hours** to reach \$35,973.00, require line-item scrutiny. The Exhibit C invoice face total (\$34,961.50 on OCR of the served papers) does not match \$210 x 169.30 arithmetic. Block-billing, non-anti-SLAPP entries (including CCP 436 work), and padding must be taxed. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1134; *Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 620-621.)
2. **Scope.** Section 425.16(c) reaches fees incurred **in connection with the special motion to**

1 **strike**, not wholesale case administration. Defendants previously attached a reduced anti-
2 SLAPP-only invoice on reply, then abandoned that reduction. (O’Connell Decl. paras. 8,
3 10-11.)

4 3. **Cross-case duplication.** The same firm seeks fees in CGC-25-631802 (\$32,928.27 noticed
5 for August 26, 2026). Shared research and dual-case billing cannot be recovered twice.

6 4. **Apportionment.** Three moving parties; fees for withdrawn or off-calendar motions and work
7 not tied to the granted special motion are not mandatory anti-SLAPP fees.

8 5. **Fee falls with appeal.** Any fee award is contingent on the anti-SLAPP order surviving appeal.
9 Plaintiff preserves that contingency under Code of Civil Procedure section 425.16(i) and asks
10 the Court to deny or reduce the present demand on lodestar and scope grounds.

11 6. **Calendar note (not overplayed).** September 8, 2026, 9:00 a.m., Department 301 (ROA-
12 confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O’Connell declaration, 10369673
13 MPA; served August 11, 2026). Plaintiff opposes the motion and does not concede a stipu-
14 lated date. Facial notice from August 11, 2026 service appears adequate under CCP 1005(b);
15 Plaintiff notes the unilateral setting for the record only.

16 **IV. ACCOMPANYING PAPERS**

17 Filed and served with this Notice in opposition to the motion noticed by Defendants for September
18 8, 2026 are:

- 19 1. Plaintiff’s Memorandum of Points and Authorities in Opposition (filing item 02).
- 20 2. Declaration of Franciscus Dylan Rosario in Support of Opposition, with Exhibit Index stub
21 (filing item 03).
- 22 3. Plaintiff’s Evidentiary Objections to Declaration of Tyler J. O’Connell (filing item 04).
- 23 4. Plaintiff’s Objections to Defendants’ [Proposed] Order (filing item 05).
- 24 5. Plaintiff’s [Proposed] Order Denying or Reducing Fees and Costs (filing item 06).
- 25 6. Proof of Service (POS-050) for this opposition cohort.
- 26 7. Declaration of Compliance with California Rules of Court, rules 2.256 and 3.1110.

27 Separately noticed on the CRC 3.1700(b) cost calendar (TBD / specially set; not merged into the
28 September 8, 2026 fee hearing unless the Court consolidates):

1 8. Plaintiff's Notice of Motion and Motion to Tax or Strike Costs (filing item 07).

2 9. Plaintiff's Response and Objections to Defendants' Memorandum of Costs (MC-010) (filing
3 item 08).

4 **V. RELIEF REQUESTED**

5 Plaintiff respectfully requests that the Court, on the motion noticed by Defendants for September
6 8, 2026:

7 A. Deny Defendants' Motion for Attorneys' Fees and Costs under Code of Civil Procedure section
8 425.16(c) in its entirety;

9 B. In the alternative, reduce any fee award to hours reasonably expended on the special motion to
10 strike after lodestar, scope, apportionment, and cross-case duplication reductions, and deny costs
11 sought in the fee motion as duplicative of the MC-010 or as not allowable;

12 C. Decline to enter any order that awards the same \$1,137.46 twice, or that enters a judgment of
13 dismissal not shown on the register of actions;

14 D. Enter Plaintiff's [Proposed] Order Denying or Reducing Fees and Costs;

15 E. Reserve MC-010 issues for Plaintiff's separately noticed Motion to Tax or Strike Costs; and

16 F. Grant such other and further relief as the Court deems just and proper.

17 Dated: August 14, 2026

18 

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